

STATE OF NEW YORK

8287--A

2025-2026 Regular Sessions

IN ASSEMBLY

May 9, 2025

Introduced by M. of A. PEOPLES-STOKES, REYES, SHIMSKY, HEVESI, SOLAGES, BERGER, KELLES, LUPARDO, MEEKS, SAYEGH, BRONSON, BURDICK, GRIFFIN -- read once and referred to the Committee on Health -- recommitted to the Committee on Health in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the public health law and education law, in relation to school potable water testing, and standards and requirements to install filtered water stations and faucets

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. Subdivision 2 of section 1110 of the public health law, as amended by chapter 130 of the laws of 2022, is amended to read as follows:

2. Where a finding of lead contamination is made, the affected school district shall: (a) ~~[continue first-drawn tap water testing pursuant to regulations promulgated pursuant to this section]~~ within sixty days of the date on which a finding of lead contamination is made, install filtered bottle-filling stations or filtered faucets, as the case may be, pursuant to section eleven of the public health law; (b) continue first-drawn tap water testing pursuant to regulations promulgated pursuant to this section; (c) provide school occupants with an adequate supply of safe, free to the school occupants, potable water for drinking as required by rules and regulations of the department until filtered bottle-filling stations or filtered faucets, as the case may be, have been installed pursuant to subparagraph (a) of this paragraph and future tests indicate lead levels pursuant to regulations promulgated pursuant to this section; and ~~[(c)]~~ (d) provide parents or persons in parental relation to a child attending said school with written notification of test results.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets ~~[-]~~ is old law to be omitted.

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§ 2. The public health law is amended by adding a new section 1111 to read as follows:

§ 1111. School water management plans. 1. As used in this section, the following terms shall have the following meanings:

(a) "Drinking fountain" shall mean a plumbing fixture that is connected to the potable water distribution system and drainage system that allows a user to obtain a drink directly from a stream of flowing water without the use of any accessory.

(b) "Filtered bottle-filling station" or "station" shall mean an apparatus that meets each of the following criteria:

(i) is connected to customer site piping;

(ii) filters water and is certified to meet NSF/ANSI standard 53 for lead reduction and NSF/ANSI standard 42 for particulate removal;

(iii) the flow rate through the station is paired to the specified flow rate of the filter cartridge;

(iv) has a light or other device to indicate filter cartridge replacement status;

(v) is designed to fill drinking bottles or other containers for personal water consumption; and

(vi) includes a drinking fountain.

(c) "Filtered faucet" shall mean a faucet that at the point of use includes a filter that is certified to meet NSF/ANSI standard 53 for lead reduction and NSF/ANSI standard 42 for particulate removal.

(d) "Plan" shall mean a drinking water management plan pursuant to subdivision three of this section.

(e) "School district" shall mean, in addition to school districts already classified as a public water system under parts 141 and 142 of title 40 of the code of federal regulations, as such regulations may, from time to time, be amended, every school district, board of cooperative educational services, charter school, and religious or independent school located in New York State that provides pre-kindergarten, elementary and/or secondary education and such education is intended to fulfill the compulsory education requirements of article sixty-five of the education law for the students that attend such school.

2. No later than one year after this act shall have become law, each school district shall submit to the department a drinking water management plan in a format to be determined by the commissioner and make such plan available to school staff, parents, guardians, and/or persons in parental relation to a child attending said school, and the general public upon request.

3. The plan shall include, at a minimum, the following information for each building under a school district's jurisdiction:

(a) the specific location of each water outlet using one of the following categories:

(i) a water outlet that will be maintained to deliver water for human consumption, whether as drinking water, as a component of a food or beverage, or for cooking purposes, using one of the following categories:

(A) the location where a filtered bottle-filling station will be maintained. The plan must provide for the maintenance of at least one filtered bottle-filling station for every one hundred occupants of the school, not including visitors or individuals attending special events.

(B) the location where a filtered faucet will be maintained. Filtered faucets may be maintained only when the installation of a filtered bottle-filling station is not feasible, but a water outlet for human

1 consumption is necessary, including, but not limited to, kitchens, nurs-
2 es' stations, preschool classrooms, and teachers' lounges.

3 (ii) a water outlet that will be maintained for purposes other than as
4 described in subparagraph (i) of this paragraph;

5 (iii) a water outlet that will be shut off or rendered permanently
6 inoperable; and

7 (b) a schedule identifying when the regular replacement of the filter
8 cartridge for each filtered bottle-filling station and filtered faucet
9 will occur in compliance with the manufacturer's instructions or recom-
10 mendations of the department.

11 4. Prior to the beginning of the two thousand twenty-seven--two thou-
12 sand twenty-eight school year, each school district, for each building
13 under its jurisdiction, shall have completed the following:

14 (a) installed all filtered bottle-filling stations and filtered
15 faucets as indicated in the plan and not already in existence;

16 (b) shut off or render permanently inoperable any water outlet provid-
17 ing water for human consumption that is not a filtered bottle-filling
18 station or filtered faucet; and

19 (c) posted a conspicuous sign near each water outlet indicating wheth-
20 er or not the outlet is intended to provide water for human consumption.

21 5. Each school district shall replace the filter cartridge for each
22 filtered bottle-filling station and filtered faucet according to the
23 filter replacement schedules established pursuant to this section.

24 6. Each school district shall review, update, and submit the plan to
25 the department at least once every five years and make changes as
26 directed by the department or as needed to comply with this section.

27 7. Prior to the beginning of the two thousand twenty-seven--two thou-
28 sand twenty-eight school year and annually thereafter, each school
29 district shall submit to the department documentation, on a form and in
30 a manner prescribed by the commissioner, that certifies that the school
31 district, for each building under its jurisdiction, has complied with
32 the requirements of this section.

33 8. Beginning on the one hundred eightieth day after the effective date
34 of this section, no school district shall replace an existing water
35 outlet or newly install a water outlet that is maintained to deliver
36 water for human consumption, whether as drinking water, as a component
37 of a food or beverage, or for cooking purposes unless the water outlet
38 is a filtered bottle-filling station or filtered faucet as defined under
39 subdivision one of this section.

40 9. On or before, but no later than, the one hundred eightieth day
41 after the effective date of this section, the department shall:

42 (a) provide a model template for the plan;

43 (b) make available training and guidance materials for schools regard-
44 ing activities relevant to compliance with this section. Such training
45 and guidance materials shall include the following:

46 (i) factors that a school should consider when selecting filtered
47 bottle-filling stations, filtered faucets, and filter cartridges;

48 (ii) approved methods to shut off or render permanently inoperable a
49 water outlet pursuant to subdivision three of this section;

50 (iii) instructions on how to properly flush a building's cold-water
51 plumbing before installing filtered bottle-filling stations and filtered
52 faucets; and

53 (iv) common filtered bottle-filling station or filtered faucet instal-
54 lation and operation errors, and how to avoid them.

55 10. Expenses incurred under this section for the acquisition, instal-
56 lation, and maintenance of filtered bottle-filling stations, filtered

1 faucets, replacement filter cartridges, and any regulations promulgated
2 thereto shall be fully reimbursable from funds appropriated through the
3 department of environmental conservation for clean water infrastructure
4 projects.

5 § 3. Subparagraph 1 of paragraph b of subdivision 6 of section 3602 of
6 the education law, as amended by section 3 of chapter 130 of the laws of
7 2022, is amended to read as follows:

8 (1) The apportionment for school building purposes to any district
9 shall be determined by adding the amount of its current year approved
10 expenditures for lease or other annual payments under the provisions of
11 section four hundred three-b, subdivision eight of section twenty-five
12 hundred three, or subdivision six of section twenty-five hundred fifty-
13 four of this chapter, other than payments under a lease-purchase agree-
14 ment or an equivalent agreement, plus the amount of its current year
15 approved expenditures under an assumed amortization for capital outlays
16 for school building purposes from its general fund, capital fund or from
17 a reserve fund to the amount of its current year approved expenditures
18 for debt service for such purposes and multiplying the sum by its aid
19 ratio. Expenditures made for computer equipment, including original
20 purchase and installation of hardware, conduit, wiring, and powering of
21 hardware installations in computer classrooms, or for building or
22 campuswide local area network systems and in-building elements of other
23 wide area networks, including the original purchase and installation of
24 conduit, wiring, and powering of hardware installations, may be included
25 in approved expenditures for building aid pursuant to this paragraph on
26 the approval of the commissioner regardless of any minimum cost require-
27 ment that may be applied to other approved expenditures pursuant to this
28 section. Such equipment expenses claimed for aid under this subdivision
29 shall not be claimed for aid under any other provisions of this chapter.
30 Provided further that any lead remediation expense required pursuant to
31 section eleven hundred ten of the public health law and any school water
32 management plan expense required pursuant to section eleven hundred
33 eleven of the public health law, where such expense is reimbursable from
34 another state or federal source, shall not be an approved expenditure
35 for purposes of this subdivision.

36 § 4. This act shall take effect immediately.